

EXHIBIT 4: DISCRIMINATORY APPLICATION OF POLICY & MGDPA/FERPA OBSTRUCTION

Subject

Respondent: Prior Lake-Savage Area Schools (ISD 719)

Statutory Focus: FERPA (34 C.F.R. § 99.10, § 99.32), Minn. Stat. § 13.04 (MGDPA), and District Policy 501

Executive Summary

This exhibit documents the District's arbitrary and discriminatory suspension of its Weapons Policy (Policy 501) in response to a violent, weaponized assault (a chair to the head causing a concussion) against the Complainant. When formally challenged to provide the underlying decision criteria, internal memos, and legal guidance justifying this deviation, the District engaged in a systemic pattern of MGDPA and FERPA obstruction. The District unlawfully withheld records of legal consultations, failed to maintain federally required disclosure logs, and improperly weaponized "civil investigative data" exceptions (Minn. Stat. § 13.39) to conceal its administrative failures, explicitly citing the parent's intent to seek regulatory oversight as justification for the withholding.

Index of Evidence Assets

Asset	File Name(s)	Relevance & Statutory Impact
Exhibit 4A: Formal Request for Weapons Policy Clarification	20250506_FormalRequest WeaponsPolicy.pdf 20250506_FormalRequest WeaponsPolicy_FULL_THR EAD.pdf	Documents the formal demand for the decision criteria used to exclude the chair assault from Policy 501, which explicitly classifies objects used to inflict bodily harm as

Asset	File Name(s)	Relevance & Statutory Impact
		weapons. It also requests records of the legal consultation the District claimed to have conducted.
Exhibit 4B: Disclosure Log & Data Sharing Notification	20250527_DisclosureLogs_FULL_THREAD.pdf	Formal inquiry requesting the federally mandated FERPA disclosure log for the sharing of the student's protected educational data with third-party legal counsel.
Exhibit 4C: The June 12th Admission of Withholding (Retaliation)	20250612_EmilyHerman_Response_FULL_THREAD.pdf	The District's response admitting that no disclosure log exists. Crucially, the District explicitly admits to withholding requested educational records under Minn. Stat. § 13.39 (Civil Investigative Data) as a direct result of the Complainant's "continuous threats to seek enforcement action" through administrative agencies.

Exhibit 4: Constructive Exclusion, Unlawful Disclosure of Data, and Denial of Educational Access

Subject [REDACTED] / Prior Lake-Savage Area Schools (ISD 719)
Legal Authority: Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. § 1232g; Minnesota Government Data Practices Act (MGDPA), Minn. Stat. § 13.04 & § 13.32; Title IX.

I. Overview

This exhibit details the sequence of actions by Prior Lake-Savage Area Schools (the "District") and its external legal counsel that resulted in the constructive exclusion of a student from public education. Following a violent, felony-level assault on the student in a classroom, the District failed to enforce its own Weapons Policy, refused to discuss or implement safety accommodations, and relied on external legal counsel to obstruct the parents' attempts to understand the District's safety protocols. This strategy forced the parents into an impossible choice: commit child neglect by sending their daughter back to an unsafe, unregulated environment, or forfeit her right to a public education.

II. The Weapons Assault and Refusal to Enforce Policy

On October 29, 2024, [REDACTED] was struck in the head five times with a chair during class, resulting in a severe concussion. Despite the severity of the attack:

- **Failure to Apply Weapons Policy:** The parents repeatedly requested that the District investigate why a chair—used repeatedly to inflict substantial bodily harm—was not classified as a weapon under District policy. The District's policy clearly stipulates that articles designed for other purposes but used to inflict bodily harm constitute weapons.
- **Refusal to Discipline or Train:** The District took no observable disciplinary action against the aggressor or the supervising teacher. When pressed, the District refused to provide the parents with an explanation as to why this was not considered a weapons attack, nor would they articulate what circumstances *would* trigger such an investigation.

III. Refusal of Safety Accommodations and "Catch-22" Exclusion

In the aftermath of the assault, the parents sought trauma-informed accommodations and a basic safety plan to ensure [REDACTED] would not be subjected to further harm. The District blatantly refused:

- **Arbitrary Denials:** The District first refused trauma-informed interview accommodations (e.g., utilizing CornerHouse) without providing a safe alternative, characterizing the parents' protective measures as a "refusal to participate."
- **Enrollment-Based Denial:** In the heavily redacted January 4, 2025 Summary Report, the

District attempted to absolve its failure to protect the student by stating: *"The district has established safety measures along with commitment to implement accommodations should CO have returned to school."*

The Insurmountable Barrier: By demanding that the child first return to the very environment where she was brutally assaulted *before* the school would discuss or guarantee her safety, the District created an insurmountable barrier. A parent who places a child in the care of a provider who failed to prevent a violent attack, took no disciplinary action, and refuses to outline safety measures in advance incurs legal exposure for child neglect. Thus, the District effectively barred [REDACTED] from receiving an education.

IV. Unlawful Disclosure to External Counsel and Obstruction

Throughout this process, the District's administration relied heavily on external legal counsel to justify its refusal to act, utilizing "attorney-client privilege" (Minn. Stat. § 13.393) to withhold records. However, this reliance introduces severe statutory and ethical violations:

- **No Legitimate Educational Interest:** Under FERPA and the MGDPA, a school may only share a student's unredacted private educational data with a third party without parental consent if that party has a "legitimate educational interest" in the child. It is impossible for an attorney whose strategy effectively bars a child from receiving an education to possess a legitimate educational interest in that child.
- **Failure to Provide Disclosure Logs:** On May 27, 2025, the parent submitted a formal data request asking: *"When the District states all responsive data has been provided, are you asserting that my child's private education data was shared with a 3rd party (the legal counsel) without the generation of a disclosure log...?"*
- **Concealment of Counsel:** The District has repeatedly refused to provide the legally mandated disclosure or privilege logs that would show when and why Caty's data was shared with this attorney, nor will they identify the counsel involved so that a professional ethical complaint can be filed.

V. Summary of Violations and Board Complicity

The District's response strategy was designed to shield the District from liability at the direct expense of the child's safety and education.

- **Board Complicity and Deliberate Indifference:** The PLSAS School Board was copied on the May 2025 communications demanding clarification on the weapons policy and the disclosure logs. The Board's failure to intervene in the administration's refusal to provide safety accommodations or enforce policy demonstrates institutional deliberate indifference to the student's exclusion, proving these actions reflect an accepted District custom rather than isolated administrative errors.

End of Exhibit 4

EXHIBIT 4A

March 13, 2025 Response11 messages

Cc: Michael Thomas <mthomas@plsas.org>

Please see the attachments below for responses to your recent emails.

Thank you,
Emily

**Emily Herman**

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

2 attachments**2024 Title IX Sexual Harassment Complaint - Summary Report.pdf**

57K

**March 13 2025 E. Herman Response.pdf**

118K

Cc: Michael Thomas <mthomas@plsas.org>

As a follow-up, after continued research and receiving additional support from Google Administration, our tech department was able to generate the attached report today.

As noted in the letter sent yesterday, we remain unclear about what you are specifically seeking with a request for a "full email log." However, we wanted to share this report as a new data option, which reflects email exchanges between

Thank you,
Emily



Emily Herman
Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

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[Quoted text hidden]



SeanLogs021225to031425.xlsx
27K

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

Thank you for your patience awaiting my response - I note I have been out of town and without access to email for the past two weeks. This looks like a great start - when can I expect to receive a fully responsive dataset that includes all emails I have sent, including the original emails reporting the sexual assaults?

Additionally, while I got in late last night and have yet to have a chance to fully review your earlier responses, it appears while preparing your responses to my data request you had time to complete the title ix investigation and come to a dismissal decision. Please consider this notification of my intent to appeal - I will follow up with full details later this evening, but at a bare minimum I would call out that the district was aware that a police investigation had been conducted into the matter, and never once expressed to it was having difficulty identifying the perpetrator or asked any follow-up questions. Additionally, I note the dismissal calls out [REDACTED] refused to submit an electronic response to interview questions, whereas the actual offer you made stated -

"We appreciate your concern with interviewing for your daughter. As mentioned previously, our investigation is separate from other entities and therefore we cannot use an outside interviewer for our process. We would still appreciate the opportunity to meet with you and your daughter either in-person or virtually. However, we would like to offer an alternative option. If you still do not wish to interview with us, we could send a set of written questions for our initial interview that you could complete with your daughter. **It would be best that the written responses are either dropped off at or mailed to Hidden Oaks or District Services Center to either [REDACTED] or myself.** This would ensure the email quarantine process would not impede the delivery of the responses."

Thank you,

[Quoted text hidden]

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

It has been almost a month since I have heard from you. When can I expect to receive the full Google Workspace Email Log export? An update on my appeal?

I note both Google and ChatGPT put the time it would take a Google Workspace administrator to generate this data at between 20 minutes to an hour and a half, with the later estimate including 20 minutes for the administrator to locate, read, and understand the instructions. Can you help me understand why it has taken months?

Thank you,

[Quoted text hidden]

2 attachments

-  **Google_Workspace_Email_Log_Timing_Estimate.pdf**
3K
-  **GoogleWorkspaceLogInstructions.pdf**
312K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

2 attachments

-  **Data Request Form.pdf**
82K
-  **Formal Data Request.pdf**
164K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached. Also, I note there was an error in the "Data Request Form" submitted earlier today - please provide

Thank you,

[Quoted text hidden]

2 attachments

-  **Formal Request - 506-1.pdf**
143K
-  **PLSAS_506.1 - Bullying_Prohibition.pdf**
199K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

-
-  **Formal Request Weapons Policy.pdf**
265K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **Data Correction - Weapons Investigation.pdf**
703K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached Formal Title IX complaint+request for appeal process

[Quoted text hidden]

 **titleixcomplaint_merge.pdf**
808K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **forwarding_activity_in_logs.pdf**
1598K

Cc: Michael Thomas <mthomas@plsas.org>

I am writing to follow up on a batch of data subject requests I submitted to the District under the Minnesota Government Data Practices Act (Minnesota Statutes Chapter 13). I emailed these requests on **May 5, 2025** and **May 6, 2025**, respectively. As of today (May 7, 2025), more than 48 hours after the first request, I have not received any acknowledgment or confirmation that the District has received these requests. I am concerned about the lack of response, especially given the timely response requirements in Chapter 13.

Contrary to District framing, the timelines and response expectations I put forth are not arbitrary or unreasonable. Minnesota law **obligates prompt action** on data requests. In particular, **Minn. Stat. § 13.03, subd. 2** requires every government entity to establish procedures to ensure that requests for government data are handled "in an appropriate and prompt manner" revisor.mn.gov. Furthermore, because my requests are for data about myself (i.e., I am the data subject), the timeline in **Minn. Stat. § 13.04, subd. 3** applies. That provision clearly states that the responsible authority "**shall comply immediately, if possible**" with a data subject's request, "**or within ten days of the date of the request, excluding Saturdays, Sundays and legal holidays, if immediate compliance is not possible.**" revisor.mn.gov In other words, the Data Practices Act expects a very prompt response for requests made by the subject of the data – up to a maximum of ten business days.

Failure to promptly acknowledge or respond to a data request is not a trivial matter. The Minnesota Department of Administration has issued guidance and advisory opinions underscoring that agencies must respond timely and cannot ignore requests. For example, in **Advisory Opinion 19-002 (2019)**, the Commissioner of Administration opined that when a state board "**did not reply to the data request**", that "**is not an appropriate response to a request for access to government data.**" content.govdelivery.com In another opinion, the Commissioner emphasized that an entity's failure to provide a data subject with access to their data within the ten-business-day window violates the statute – the City in that case "**did not respond appropriately**" when it "**did not respond within 10 business days**" as required by Minn. Stat. § 13.04mn.gov. These opinions make clear that **prompt communication and compliance** are mandatory obligations under Chapter 13, not optional courtesies.

Even if gathering the requested data might take up to the ten days allowed by law, **basic acknowledgment of receipt** is widely regarded as a minimum best practice. Promptly confirming that you received my request and are processing it is important for transparency and to assure me that the request is being handled. Many government entities follow this practice of acknowledging requests upon receipt as part of their Data Practices procedures [wlssd.com](https://www.wlssd.com). The lack of any acknowledgement from the District thus far raises concerns that my requests may not have been received or logged, or that they are not being handled in the statutorily required manner.

In light of the above, I respectfully request the following:

- **Immediate acknowledgment of receipt** of my May 5 and May 6 data requests. Please confirm that these email requests were received by the responsible authority or designee, and the dates on which they were received.
- **Estimated timeline for compliance with my requests.** Please inform me when I can expect to inspect or receive copies of the requested data. As noted, Minn. Stat. § 13.04, subd. 3 requires that data subject requests be fulfilled "**immediately, if possible,**" and absolutely no later than ten business days from the request date [revisor.mn.gov](https://www.revisor.mn.gov). An indication of when the District plans to provide the data (or an explanation if more time is needed for a complex request) will help ensure we remain within statutory compliance.

I want to emphasize that **these requests were properly submitted under Chapter 13**, and the District has a legal obligation to respond **promptly and fully**. At minimum, a timely acknowledgment is expected. I am eager to cooperate and willing to clarify any aspect of my requests if needed. However, I need confirmation that the District is aware of the requests and is moving forward to fulfill them as required by law.

Thank you for your prompt attention to this matter. I look forward to your immediate acknowledgment and an update on the processing of my data requests. If there is any reason for the delay or if additional information is required from me, please let me know right away. Prompt communication will help avoid any further issues and ensure compliance with the Minnesota Government Data Practices Act.

Sincerely,

[Redacted signature]

[Quoted text hidden]

EXHIBIT 4B

May 27, 2025 Response4 messages

Cc: Michael Thomas <mthomas@plsas.org>

Please see the attached below for responses to your recent emails.

Thank you,
Emily

**Emily Herman**

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

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**May 27 2025 Response.pdf**184K

Cc: Michael Thomas <mthomas@plsas.org>

Thank you, Emily -

For the record, I note - I am not now nor have I to date engaged in debate or dispute with the District. I have clearly and succinctly stated my rights under MGDPA, FERPA, or Title IX. The District is free to do with that information - and the fact that they were explicitly notified of my rights on record - what they will. Specifically with MGDPA the District incurs, what, up to \$1000 in liability - in addition to legal fees - every time it gets it wrong? For the record, I also note that the District's insistence that it will only respond to requests submitted on their public data access request form represents an illegal barrier to access. The MDA clearly states that I may submit requests to an appropriate authority in writing. While you are free to request I use your form, me choosing not to acknowledge or accept the 30-day response window included on that form does not waive you of any liability for failure to respond.

Your statements in the attachment to this email are not clear - specifically, you state that you deny my request; Please note a blanket denial would also impact item 5 -

Include this request and any statement of disagreement permanently in the education record if full correction is not made, as required by 34 CFR § 99.21(b)(2).

Is the District asserting that they will not include the request as a statement of disagreement in the education record - and include it whenever the data is distributed - pursuant to its obligations under both FERPA and the MGDPA? Please consider this a formal request to be informed of the content and the meaning of the record generated by the District's email. This request is made in accordance to 13.04 sub 3, which states "Upon request to a responsible authority or designee, an individual shall be informed whether the individual is the subject of stored data on individuals, and whether it is classified as public, private or confidential. Upon further request, an individual who is the subject of stored private or public data on individuals shall be shown the data without any charge and, **if desired, shall be informed of the content and meaning of that data.**"

I note this is the same authority under which my requests on the 9th and the 11th were submitted. It is not clear to me the authority or basis by which the District believes it is not obligated to respond to such requests. Please consider this a formal request, under MGDPA, for the District to explain to me the meaning and basis of the record generated by their email; specifically, we do not understand what law or basis it uses to deny any obligation under this statute. Additionally, this is a formal request under MGDPA that the District provide access to any policy, memo, or guidance that speak towards the District's claimed immunity. For the record, I note the 10 day response window has already elapsed on both of these requests; if the District had questions or required clarification, the appropriate time to bring that up would have been within the 10-day response period. For the record, I will also note the District has already failed to acknowledge the data request sent on the 15th, and is in violation of the guidance provided by MDA in opinions 18-010 and 18-005, but you still have a couple days to come into compliance. Despite the evidence to the contrary, I trust the District will do what is right.

Please consider this an official request, pursuant to my rights under FERPA and the MGDPA, for all records that were generated as a result of the investigation the District performed in which it validated the accuracy and completeness of the record in question. This includes, but is not limited to, the specific records that disprove the fact that my daughter was enrolled in District services through mid december, as well as the specific records that demonstrate that the District was not notified of our concerns for our child's safety in email via the attendance inbox early November, and that those emails were not forwarded on to District administration, despite evidence in the District's own records that show otherwise. It should also at a minimum include the evidence that the District has gathered that speaks against the fact that I had specifically requested an unbiased investigation be carried out by an agency trained in trauma-informed practices. I note that as a single person served as the lead investigator, decision maker, and title ix coordinator in the dismissal, the bias is systemic and undeniable - it seems like this would have been a hard hill for a government agency acting in good faith to have climbed.

For the record, the District's claim that all responsive data has been provided is demonstrably false. It has yet to provide full email logs, instead attempting to substitute data on the content (PST file) for data on the process and procedure (email logs). Despite public documentation from Google stating otherwise, earlier district statements in which the District acknowledges auto-reply responses, sent from District emails, go out before bounceback emails, and screenshots within responsive data showing district IT staff viewing logs of email bouncebacks and quarantined messages, it continues to claim it does not have these records. Even if the substitution of data on content for data on process were valid - which it is not - it has yet to produce the requested original notifications sent on the 1st and the 4th of November, or the audit that the school Principal states in email occurred and found those emails. It has yet to produce the public data requested on where the District Title IX coordinator's email and contact information was posted on their website, or when the abuse reporting form for my daughter's school was deleted. I note for the record that despite it being 3 months from that request, the form continues to be inaccessible **to this day**. Amazingly, this is but a small sampling of the failures to date, yet alone go beyond what can be attributed to negligence and speak to intentional and willful obstruction.

Finally a closing thought - while I appreciate the District's continued demonstration of bad faith and bias - as if the failure to re-open the appeals window or the clear bias caused by a single person acting as judge, jury, and executioner were not enough on it's own - the fact remains that as the District's Title IX coordinator, it is literally your job to look out for and protect victims of abuse who are among our counties most vulnerable population. I do not have words to describe how heartbreaking it is to watch you make a mockery of that duty so unabashedly.

under the authority that is referenced in each.

[Quoted text hidden]

In re-reading your statement, I came across another point that is not clear. When the District states all responsive data has been provided, are you asserting that my child's private education data was shared with a 3rd party (the legal counsel) without the generation of a disclosure log, or are you claiming that the disclosure log is protected under a yet as-

of unidentified statute? This again is a formal request for clarification under MGDPA 13.04. My name is [REDACTED]

Thank you,
[REDACTED]

[Quoted text hidden]

To: Andy OBrien [REDACTED]

Saw you called - I will call later today once I have a little breathing room; mornings are always tough. I've paused the title ix complaint (I figure the failure to notify me of right to appeal gives me breathing room) and started work on a more focused complaint targeting the latest insanity they've thrown my way, details attached.

[Quoted text hidden]

2 attachments

 **May 27 2025 Response.pdf**
184K

 **Data Correction - Weapons Investigation.pdf**
703K

EXHIBIT 4C



PRIOR LAKE-SAVAGE
AREA SCHOOLS

June 12, 2025

Dear Mr. [REDACTED]

I write in response to your two emails on May 27, 2025, three emails within three minutes on June 1, 2025, and email on June 2, 2025. As previously explained, the District is not interested in engaging in a back-and-forth discussion and provides responses only to the extent required by law.

1. May 27 at 11:41 p.m.

You have requested that the District include "this request and any statement of disagreement permanently in the education record if full correction is not made, as required by 34 C.F.R. § 99.21(b)(2)." You claim your request is a "formal request to be informed of the content and meaning of the record generated by the District's email." The District's email is written in plain English and does not rely on any proprietary or inaccessible technical terms. The District is not required to explain the meaning of records when the meaning is clear. *See* Minn. Dep't of Admin., Adv. Op. 03-037 (Sept. 15, 2003) (stating a government entity does not have to explain the meaning of words unless the meaning is not readily apparent in the context).

The District further notes that the 34 C.F.R. § 99.21(b)(2) does not apply in this circumstance. That provision begins "If, as a result of the hearing..." There has been no request for a hearing and therefore no result of a hearing. Accordingly, the District had no obligation to follow 34 C.F.R. § 99.21(b)(2) or (c). In addition to not requesting a hearing pursuant to FERPA, the District is not aware of any pending appeal before the Commissioner of the Department of Administration pursuant to Minnesota Statutes Section 13.04, subd. 4.

The District does not maintain data responsive to your request for "any policy, memo, or guidance that speak towards the District's claimed immunity" with respect to Minnesota Statutes Section 13.04.

On June 10, 2025, the District provided you "all records that were generated as a result of the investigation the District performed in which it validated the accuracy and completeness of the record in question." Pursuant to Minnesota Statutes Section 13.393, the District did not provide records that are protected by the attorney-client privilege. Additionally, based on your continuous threats to seek enforcement action against the District through administrative agencies, the District's chief attorney has determined there to be a pending civil legal action pursuant to Minnesota Statutes Section 13.39, subdivision 1, and the data is also not produced as civil investigative data.

The District does not maintain data responsive to your request for a disclosure log.

2. May 27 Email at 11:56 p.m.

You ask:

When the District states all responsive data has been provided, are you asserting that my child's private education data was shared with a 3rd party (the legal counsel) without the generation of a disclosure log, or are you claiming that the disclosure log is protected under a yet as-of unidentified statute?

The District did not identify any statutory basis for withholding a disclosure log. There is no disclosure

log.

The following is provided to the extent it informs the meaning of the data stating the District does not have a disclosure log. The District is not required to create a record of requests for access to data and access to data when the "request was from, or the disclosure was to... [a] school official under § 99.31(a)(1)." 34 C.F.R. § 99.32(d)(2). The District's attorneys are school officials pursuant to 34 C.F.R. § 99.31(a)(1)(B).

3. June 1 Email at 9:04 a.m.

This email does not contain requests for existing data.

4. June 1 Email at 9:06 a.m.

The District does not maintain data responsive to this request.

5. June 1 Email at 9:07 a.m.

The records you have requested under numbers 1 and 2 are protected by the attorney-client privilege, work-product doctrine, and civil investigative data. Pursuant to Minnesota Statutes Sections 13.39 and 13.393, the District is not providing you with those records.

The District does not maintain data responsive to number 3.

6. June 2 Email

The District did not receive data requests from you on May 10 and May 12. The District responded to your May 9 and 11 requests on May 27, 2025.

Your May 15 email contained a demand for "immediate acknowledgement" of your May 9 request and a "description of all actions the District has taken to date toward fulfilling" the May 9 request. Both of these are requests for the District to create data, not requests for data the District is required to produce. The only data the District maintains that would be responsive to your third request is data protected from disclosure by the attorney-client privilege and Minnesota Statutes Section 13.393.

Again, the District did not receive a May 28 request. The District responded to your May 27 request by providing documents on June 10, and in the first section of this communication above.

Sincerely,

Emily Herman
Executive Director of Administrative Services

Itemized Redaction List

[illegible]